

AETHER WIRELESS · KNOWLEDGE BASE

Mobile Contract Policy

Category B — Policy & Process Knowledge Base

Document ID	AW-MOB-001
Version	3.0
Last Updated	August 2026
Department	Legal & Compliance
Company	Aether Wireless
Classification	Internal — Training & Reference

Overview

This Mobile Contract Policy ("Policy") establishes the terms and conditions governing monthly mobile service agreements between Aether Wireless ("we," "us," or "Aether Wireless") and our customers ("you" or "Customer"). This Policy applies to all mobile service contracts, including month-to-month auto-renewing service plans, promotional device contracts, and device installment agreements. By activating service with Aether Wireless, you acknowledge that you have read, understood, and agree to be bound by the terms set forth in this Policy, as well as any applicable service-specific terms, pricing guides, and fair use policies referenced herein.

This Policy is designed to provide transparency regarding your rights and obligations as an Aether Wireless customer. It covers essential aspects of your service relationship, including contract structure and renewal terms, cooling-off periods, termination procedures and associated fees, device installment obligations, procedures for material contract changes, acceptable use expectations, prohibited activities, liability limitations, dispute resolution mechanisms, and billing practices. Aether Wireless is committed to delivering reliable mobile connectivity while maintaining fair and clear contractual terms that protect both the company and its customers.

The terms contained in this Policy are binding and constitute a legally enforceable agreement between you and Aether Wireless. Should any provision of this Policy be found unenforceable or invalid, the remaining provisions shall continue in full force and effect. Aether Wireless reserves the right to modify this Policy as described herein, and your continued use of our services following any such modifications constitutes acceptance of the updated terms.

Mobile Contract Policy

Service Term and Renewal

All monthly mobile service contracts with Aether Wireless are structured as month-to-month agreements that automatically renew on a rolling basis. Your service term begins on the date of activation and continues month-to-month until either party provides appropriate notice of termination or the contract is otherwise ended in accordance with this Policy. Auto-renewal means that your selected service plan will continue uninterrupted, and associated charges will continue to apply, unless you exercise your right to terminate as outlined below.

At the end of each monthly billing cycle, your service will automatically renew for the subsequent month under the same terms and conditions, including your current pricing plan, unless you notify us of your intent to change your plan or terminate service. Aether Wireless will send renewal reminders prior to each billing cycle, though it is your responsibility to maintain current contact information on file and to review billing statements regularly. Plan pricing is subject to change as described in the Material Changes section of this Policy.

14-Day Cooling-Off Period

Aether Wireless provides a 14-day cooling-off period commencing on the date your service is activated. During this period, you may cancel your mobile service contract without incurring any early termination fees or penalties, provided you return any promotional devices or equipment in original condition, subject to normal wear and tear. This cooling-off period is designed to allow you to evaluate our service quality and coverage in your typical usage areas before committing to a longer-term relationship.

To exercise your right to cancel during the cooling-off period, you must contact Aether Wireless Customer Support via phone, email, or our online portal and provide clear notification of your intent to cancel. You must return any Aether Wireless-owned equipment, including promotional devices, SIM cards, and accessories, within 14 calendar days of your cancellation request. Upon receipt of returned equipment in acceptable condition and processing of your cancellation, any service charges incurred during the cooling-off period will be refunded on a pro-rated basis. Device installment agreements, if applicable, are subject to separate return conditions as outlined in the Device Installment Agreements section of this Policy.

Early Termination Fees

If you cancel a line that is part of a promotional device contract before completing the minimum 12-month commitment period, you will be charged an early termination fee of \$175. This fee applies to each line canceled prematurely and is in addition to any outstanding device installment payments. The promotional device contract term begins on the date the device is activated on your account and runs for a minimum of 12 consecutive months.

The early termination fee is designed to recover the subsidized value of promotional devices provided at discounted rates in exchange for your commitment to maintain service for the promotional period. If you are on a month-to-month plan without a promotional device contract, you may cancel at any time without paying an early termination fee, subject to providing appropriate notice as described in the Termination section of this Policy.

Exceptions to the early termination fee may be granted in limited circumstances, including but not limited to: demonstrated military deployment, documented medical conditions preventing service usage, or death of the account holder. Requests for fee waivers must be submitted in writing with supporting documentation for review by Aether Wireless Customer Relations.

Device Installment Agreements

Device installment agreements are separate from your mobile service contract and are governed by their own specific terms and conditions. When you purchase a device through Aether Wireless's installment program, you enter into a financing arrangement that obligates you to make monthly payments for the device over the agreed installment period, typically 24 or 36 months.

Upon cancellation of your mobile service contract for any reason, whether during the cooling-off period, after the promotional period, or due to voluntary termination, any outstanding balance remaining on your device installment agreement becomes immediately due and payable in full. This means that if you cancel service while still making installment payments for your device, you must pay the entire remaining balance to satisfy your

device financing obligation. Aether Wireless does not prorate or waive remaining installment payments upon service cancellation.

If you return a device in accordance with the cooling-off period provisions, you may be eligible for a refund of device payments made to date, subject to inspection and evaluation of the returned device's condition. Damage beyond normal wear and tear may result in additional charges or reduction of any refund. Device installment agreements may be transferred to another Aether Wireless customer in good standing with approval from Aether Wireless, subject to credit qualification and administrative processing.

Termination Procedures

Customers may terminate their mobile service contract at any time by providing 30 days' written notice to Aether Wireless. Notice may be submitted through our online customer portal, by certified mail to the address specified in your billing materials, or by contacting Customer Support. The 30-day notice period begins on the date your termination request is received and confirmed by Aether Wireless. Service will continue to operate during the notice period, and you are responsible for all charges incurred during this time.

Upon expiration of the notice period, service will be disconnected, and final billing will be processed. Any outstanding charges, including final monthly service fees, device installment balances, early termination fees (if applicable), and any other amounts owed, will be due immediately. You are responsible for ensuring that all device equipment is returned or that you have satisfied all financial obligations regarding device ownership.

Aether Wireless may terminate your service immediately for violation of this Policy, including prohibited uses, non-payment, or material breach of contract terms. In such cases, applicable termination fees, device installment obligations, and other charges remain due, and Aether Wireless reserves all rights to pursue collection of outstanding amounts.

Material Contract Changes and Customer Rights

Aether Wireless reserves the right to make material changes to this Policy, your service plan terms, pricing, or the terms of your mobile contract. When material changes are made, Aether Wireless will provide you with at least 30 days' written notice prior to the effective date of such changes. Material changes include but are not limited to: increases to your monthly service rate, reductions in data allowances, changes to included features or services, modifications to termination fee structures, and alterations to the fair use policy that materially impact service usage.

Upon receiving notice of a material change, you have the right to terminate your mobile service contract without incurring any early termination fee or penalty. To exercise this right, you must notify Aether Wireless within 30 days of receiving the change notification. Your termination will be processed effective the day prior to the effective date of the material change, and you will not be charged the early termination fee. You may also contact Customer Support to discuss alternative service options that may be available.

If you do not terminate your contract within the specified period following notice of a material change, you will be deemed to have accepted the changes, and they will apply to your continued service. It is your responsibility to review notices from Aether Wireless and to update your contact information to ensure you receive important communications regarding your account.

Fair Use and Network Management

Aether Wireless is committed to providing reliable, high-quality mobile service to all customers. To ensure optimal network performance and fair access for all users, Aether Wireless employs network management practices designed to prevent network congestion, maintain service integrity, and protect the security of our

network infrastructure.

The Aether Wireless Fair Use Policy establishes reasonable usage expectations for each service plan. While most customers' usage patterns fall well within normal ranges, excessive usage that materially degrades network performance for other customers may result in temporary speed reductions, data throttling, or additional charges as specified in your service plan terms. Fair use evaluations consider factors including but not limited to: data consumption volume, usage patterns indicative of abuse, and the impact on overall network capacity.

Aether Wireless may prioritize network traffic during periods of high demand to ensure that all customers maintain access to essential services. This may result in temporary differences in data speeds for customers engaged in high-bandwidth activities such as streaming or large file downloads during peak usage periods. Network management actions are applied impartially and are not intended to disadvantage any individual customer or class of customers.

Prohibited Uses

The following activities are strictly prohibited under this Policy and may result in immediate service termination, account suspension, or legal action:

Reselling and Commercial Use: You may not resell, redistribute, or relay Aether Wireless service to third parties without express written authorization from Aether Wireless. Service is provided for personal, individual use only. Commercial exploitation of our network, including using service to provide internet access to businesses or individuals not authorized under your account, is prohibited.

Automated Messaging and Communications: The use of automated messaging systems, auto-dialers, bulk messaging services, or any equipment or software designed to generate automated calls or text messages without human intervention is prohibited. This includes but is not limited to: telemarketing operations, robocalling, spam SMS or MMS, and any activity that generates excessive network traffic or disrupts service for other customers.

Illegal Content and Activities: You may not use Aether Wireless services to transmit, distribute, store, or make available any content or engage in any activity that violates applicable local, state, federal, or international laws. This includes but is not limited to: copyright infringement, distribution of child exploitation material, fraud, identity theft, harassment, stalking, threats, securities violations, and engagement in illegal gambling or drug trafficking.

Network Security Violations: Any attempt to breach, disrupt, or gain unauthorized access to Aether Wireless network infrastructure, other customers' accounts, or any third-party systems is prohibited. This includes hacking, port scanning, denial of service attacks, malware distribution, or any activity that threatens the security or integrity of our network or the services of other customers.

Harassment and Abuse: Using Aether Wireless services to harass, defame, abuse, threaten, or otherwise cause harm to any individual or group is prohibited. This includes unwanted communications, cyberbullying, and the distribution of personally identifying information without consent.

Violations of this Prohibited Uses section may result in immediate service termination without refund, imposition of applicable fees, and referral to law enforcement authorities where appropriate. Aether Wireless reserves the right to monitor network traffic and usage patterns to detect potential violations of this Policy.

Liability and Service Limitations

AETHER WIRELESS SERVICES ARE PROVIDED "AS IS" AND "AS AVAILABLE." TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, AETHER WIRELESS DISCLAIMS ALL WARRANTIES,

EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. AETHER WIRELESS DOES NOT WARRANT THAT SERVICE WILL BE UNINTERRUPTED, ERROR-FREE, OR COMPLETELY SECURE.

Aether Wireless shall not be liable for any indirect, incidental, special, consequential, or punitive damages, including but not limited to loss of profits, loss of data, business interruption, or cost of replacement services, arising out of or related to your use of or inability to use Aether Wireless services, regardless of the theory of liability, even if ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. IN NO EVENT SHALL AETHER WIRELESS'S TOTAL LIABILITY FOR ALL CLAIMS ARISING OUT OF OR RELATED TO THIS POLICY OR YOUR SERVICE EXCEED THE TOTAL AMOUNTS PAID BY YOU TO AETHER WIRELESS DURING THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

Aether Wireless is not responsible for: (a) acts or omissions of third parties, including other carriers, service providers, or equipment manufacturers; (b) content transmitted over our network; (c) loss or theft of devices or equipment; (d) service interruptions caused by force majeure events, including natural disasters, war, terrorism, civil unrest, or government actions; (e) routine network maintenance and upgrades; or (f) acts or omissions of you or your authorized users.

You acknowledge that mobile service coverage and quality may vary based on location, terrain, weather conditions, network congestion, equipment compatibility, and other factors beyond Aether Wireless's control. While we strive to provide coverage as described in our coverage maps, we do not guarantee specific coverage areas or signal strength at any particular location.

Billing and Payment

All charges for Aether Wireless services are billed in advance on a monthly cycle. Your billing cycle begins on the date of service activation and recurs on the same date each subsequent month. Monthly service charges, device installment payments, taxes, fees, and any other applicable charges are included in your billing statement.

Payment is due by the due date specified on your billing statement. Aether Wireless accepts payment via credit card, debit card, electronic funds transfer (ACH), check, and cash (at authorized payment locations). Payment methods may be limited based on account status or billing history. Automatic payment enrollment is available and recommended to avoid late payment fees.

A late payment fee of \$10 or 1.5% of the overdue balance, whichever is greater, may be applied to accounts not paid by the due date. Service may be suspended if payment is not

Service Term and Renewal

This section governs the duration, renewal, and termination of your mobile service agreement with Aether Wireless. Understanding the service term structure is essential for managing your contract effectively and avoiding unintended obligations or charges.

2.1 Monthly Service Agreement

Your Aether Wireless mobile service is provided on a month-to-month basis, meaning your service continues automatically from month to month unless you exercise your right to terminate or Aether Wireless modifies the terms of your agreement as permitted herein.

Service Commencement: Your service term begins on the date your account is activated or the date you first use any service on your line, whichever occurs first. You are billed in advance for each monthly service cycle, and your service will remain active until properly terminated.

Cooling-Off Period: Upon initial contract formation, you have a fourteen (14) calendar day cooling-off period beginning on your service start date. During this period, you may cancel your service without penalty or early termination fee, provided you return any promotional devices in accordance with our returns policy. To exercise this right, you must contact Customer Support and explicitly request cancellation within the 14-day window. Any device installments or equipment charges incurred during this period remain payable.

Monthly Billing Cycle: Your service is billed on a recurring monthly basis. The monthly service fee is due on your designated billing date each month. Payment is automatically processed using your chosen payment method on file, unless you have elected to make manual payments through your online account.

Promotional Device Contracts: If you received a promotional or discounted device as part of your service agreement, your line may be subject to a twelve (12) month commitment period. Early termination of a line with an active promotional device contract will result in an early termination fee of \$175, which shall become immediately due and payable upon cancellation. This fee applies in addition to any outstanding device installment balances.

Device Installment Agreements: Device installment agreements are separate contractual obligations from your monthly service agreement. Should you cancel your service for any reason, any remaining balance on your device installment plan becomes immediately due in full. Device installments are not prorated or waived upon service termination, and you remain legally obligated to pay the total amount financed regardless of service status.

Material Contract Changes: Aether Wireless reserves the right to modify the terms of your service agreement, including but not limited to monthly fees, data allowances, service features, and acceptable use policies. In the event of a material change to your contract, Aether Wireless will provide you with at least thirty (30) calendar days' written notice prior to the effective date of such changes. Notice may be provided via email, SMS, or through your online account messaging center.

Customer Right to Terminate Upon Material Changes: Upon receipt of notice regarding a material contract change, you have the right to terminate your service without penalty or early termination fee. To exercise this right, you must notify Aether Wireless of your intent to terminate prior to the effective date of the material change. If you do not terminate and continue using your service after the effective date, you will be deemed to have accepted the modified terms.

2.2 Auto-Renewal Process

Your Aether Wireless service operates on an automatic renewal basis, ensuring continuous service availability without requiring you to manually re-enroll each month.

Automatic Renewal: At the conclusion of each monthly billing cycle, your service automatically renews for the subsequent month. This process occurs without requiring any action on your part. Your selected service plan, including any applicable promotional rates, continues under the same terms unless modified in accordance with the material contract change provisions.

Renewal Notification: Approximately three (3) days prior to the end of each billing cycle, Aether Wireless will send a renewal notification to your registered email address and/or via SMS to your primary line. This notification confirms your upcoming renewal and provides a summary of charges for the forthcoming billing period. It is your

responsibility to ensure your contact information is current in your account profile.

Plan Updates at Renewal: If your service plan includes promotional pricing with a defined expiration date, Aether Wireless will notify you prior to the end of the promotional period. Upon renewal after a promotional period ends, standard rates for your selected service tier will apply unless you contact Customer Support to select an alternative plan. You may also modify your plan during the renewal process by contacting Customer Support or accessing your online account management portal.

Cancellation Prior to Renewal: To prevent automatic renewal, you must submit a cancellation request prior to the end of your current billing cycle. Cancellation requests must be submitted through one of the following channels:

- Online via your account management portal
- By contacting Customer Support via telephone
- By written request submitted via postal mail to the address listed in your account documentation

Cancellation requests submitted after the billing cycle has ended but before the next renewal may be processed, though you may be responsible for charges incurred during the intervening period. Requests must be received at least twenty-four (24) hours before your scheduled renewal to avoid charges for the subsequent month.

Failure to Renew Due to Payment Issues: If your payment method fails during the auto-renewal process, Aether Wireless will attempt to process payment again within seventy-two (72) hours. During this period, your service may be suspended. If payment is not successfully processed after three (3) attempts, your service will be terminated, and any remaining device installment balances will become immediately due. You may reinstate your service by contacting Customer Support and providing valid payment information, subject to a reconnection fee where applicable.

Post-Termination Reinstatement: If your service is terminated due to non-renewal or payment failure, you may request reinstatement within thirty (30) days of termination. Reinstatement is subject to account review, payment of all outstanding balances, and any applicable reconnection fees. Service features, promotional rates, and device subsidies available at the time of original enrollment may not be available upon reinstatement.

2.3 Contract Termination by Customer

Notice Requirements

Customers who wish to terminate their mobile service contract must provide written notice to Aether Wireless. For standard month-to-month service agreements, customers may terminate at any time by contacting customer service or submitting a termination request through the online account portal. The termination request must include the account holder's name, account number, and the specific lines to be terminated. Aether Wireless will confirm receipt of the termination request and provide a final billing date, which typically falls on the last day of the current billing cycle.

Cooling-Off Period

Customers who enter into a new service contract or activate a new line may cancel their agreement without penalty within 14 calendar days of the contract start date, provided they return any company-provided equipment in good working condition. This cooling-off period allows customers to evaluate the service quality and coverage in their area before committing to the full contract term. For detailed information regarding the cooling-off period, including eligibility requirements and return procedures, please refer to the "Cooling-Off Period" section of this policy.

Early Termination Fees

When a customer cancels a line that is part of a promotional device contract before completing the required 12-month commitment period, an early termination fee of \$175 will apply. This fee is designed to recover the subsidized value of the promotional device offered at a discounted rate under the promotion. The early termination fee becomes due and payable on the customer's final bill and must be settled before the termination is finalized.

Customers who wish to cancel during the promotional period should be aware that any promotional credits or discounts applied to their account during the active promotional period may be reversed on the final bill. Aether Wireless will provide an itemized breakdown of any charges applied upon termination request.

Device Installment Agreements

Device installment agreements are separate from the monthly mobile service contract and are governed by their own terms and conditions. When a customer terminates their mobile service contract, any outstanding balance remaining on a device installment agreement becomes immediately due and payable in full. The device installment agreement obligates the customer to complete all payments regardless of service termination.

Customers who terminate service while still making payments on a device purchased through an installment plan will be responsible for the full remaining balance. Aether Wireless does not offer pro-rated refunds for device payments made in advance. Customers may choose to continue making installment payments independently, or they may pay the remaining balance in a single lump sum to satisfy the agreement.

Termination for Material Contract Changes

Aether Wireless reserves the right to modify this contract, including but not limited to rates, service features, terms, and conditions. When material changes are made to the contract, Aether Wireless will provide customers with at least 30 days' written notice prior to the effective date of such changes. Material changes include but are not limited to: increases to the monthly service rate, reduction in data allowances, changes to included features, or modifications to termination provisions.

Upon receiving notice of a material contract change, customers have the right to terminate their contract without incurring any early termination fees or penalties. To exercise this right, customers must notify Aether Wireless within 30 days of receiving the notice of material change. The termination will be processed effective the day prior to the effective date of the material change, and no further charges will apply beyond the current billing cycle.

Billing Upon Termination

Upon termination of the contract by the customer, Aether Wireless will calculate the final bill, which includes: any early termination fees applicable under the promotional device contract, the full remaining balance on any device installment agreements, proration of the monthly service charge up to the termination date, and any outstanding charges for services used prior to termination. Final bills are typically generated within 5-7 business days after the final billing cycle closes and are payable upon receipt.

Binding Arbitration and Small Claims Exception

Any dispute, claim, or controversy arising out of or relating to this contract, or the breach, termination, enforcement, interpretation, or validity thereof, shall be settled by binding arbitration administered by the American Arbitration Association in accordance with its Commercial Arbitration Rules. The arbitration shall be conducted in the state where the customer's billing address is located, and the arbitrator's award may be entered in any court having jurisdiction thereof.

Notwithstanding the foregoing binding arbitration provision, either party may elect to bring an individual claim in small claims court in the county where the customer resides, provided that the claim is within the jurisdictional limits of that court and remains in that court. This small claims exception applies only to individual claims and does not apply to class, collective, or representative actions.

2.4 Contract Termination by Aether Wireless

Termination for Cause

Aether Wireless may terminate this contract and discontinue service immediately, or may suspend service pending termination, for any of the following reasons:

- **Material Breach:** Failure to pay amounts due within 30 days of the due date, or failure to comply with any material term or condition of this contract.
- **Prohibited Uses:** Utilization of the service for any prohibited purpose as outlined in this section.
- **Excessive Use or Abuse:** Use of the service in a manner that exceeds fair use limitations or that materially interferes with Aether Wireless's network operations or the service■■■■■■■■■.
- **Fraud or Misrepresentation:** Providing false or misleading information to Aether Wireless, or use of the service for fraudulent purposes.
- **Illegal Activity:** Use of the service in connection with any illegal activity or to facilitate illegal conduct.

Prohibited Uses

Customers are strictly prohibited from using the Aether Wireless service for any of the following purposes:

- **Reselling or Commercial Redistribution:** Reselling, renting, leasing, or otherwise providing access to the service to third parties for commercial purposes without express written authorization from Aether Wireless. This includes using the service to provide internet access to multiple users who are not authorized account holders.
- **Automated Messaging:** Using the service to transmit unsolicited bulk messages, spam, or automated communications, including but not limited to: auto-dialing, predictive dialing, robocalls, mass text messaging campaigns, or any form of automated voice or text communication sent to recipients who have not consented to receive such communications.
- **Illegal Content:** Transmitting, storing, or facilitating access to any content that is unlawful, defamatory, obscene, pornographic, or that violates the intellectual property rights of third parties.
- **Network Disruption:** Engaging in activities that intentionally disrupt, degrade, or impair the function of Aether Wireless's network or the services of other customers, including but not limited to: hacking, introducing viruses or malware, conducting denial-of-service attacks, or using bandwidth in a manner that unreasonably burdens the network.
- **Harassment or Abuse:** Using the service to harass, threaten, abuse, or defame any person or entity, or to facilitate such conduct.

Aether Wireless reserves the right to immediately suspend or terminate service for any prohibited use without prior notice. Customers who engage in prohibited uses may also be subject to legal action and liability for damages.

Fair Use and Network Management

Aether Wireless is committed to providing reliable, high-quality service to all customers. To ensure optimal network performance and fair access for all users, the following fair use policies apply:

Data Allowances: Customers on plans with specified data allowances may have their data speeds reduced, or data access suspended, once the monthly allowance is exhausted. Specific data allowances and throttling thresholds vary by plan and are detailed in the plan summary provided at the time of contract execution.

Network Management: Aether Wireless employs reasonable network management practices to maintain network integrity and prevent abuse. These practices may include: identifying and addressing network congestion, blocking ports or protocols used for malicious activities, filtering spam, and implementing measures to protect against denial-of-service attacks. Aether Wireless may prioritize traffic during periods of high network demand to ensure that all customers have access to reliable service.

Unlimited Plans: Customers on unlimited plans are subject to reasonable use limits. Aether Wireless reserves the right to limit, restrict, or throttle data speeds for customers whose usage materially exceeds the usage patterns of typical customers on the same plan. Such limitations are implemented only when necessary to protect the network from excessive strain and are applied in a non-discriminatory manner.

Hotspot and Tethering: Use of mobile hotspot and tethering features is subject to the data allowances and fair use provisions of the customer's specific plan. Excessive use of hotspot or tethering functionality may result in speed reduction or data access limitations.

Service Limitations and Disclaimers

Aether Wireless does not guarantee uninterrupted or error-free service. Service availability may be affected by factors including but not limited to: network coverage limitations, geographic terrain, weather conditions, network congestion, equipment compatibility, and maintenance activities.

Coverage and Service Availability: Aether Wireless provides service in covered areas as designated on our coverage map. However, coverage may vary and is not guaranteed in all locations. Dead zones, dropped calls, and reduced data speeds may occur, particularly in rural or remote areas, indoors, or in structures that interfere with radio signals.

Network Performance: Data speeds and other service performance metrics are approximate and may vary based on network conditions, device capabilities, and other factors. Aether Wireless does not guarantee specific data speeds or latency levels.

Force Majeure: Aether Wireless shall not be liable for any failure or delay in performance due to circumstances beyond its reasonable control, including but not limited to: acts of God, natural disasters, war, terrorism, riots, embargoes, acts of civil or military authorities, fire, floods, epidemics, pandemics, strikes, or failures of third-party telecommunications providers.

Liability Limitations

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, AETHER WIRELESS'S LIABILITY FOR ANY CLAIMS ARISING OUT OF OR RELATED TO THIS CONTRACT OR THE SERVICE SHALL BE LIMITED TO THE AMOUNTS PAID BY THE CUSTOMER TO AETHER WIRELESS DURING THE TWELVE (12) MONTH PERIOD IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO THE CLAIM. IN NO EVENT SHALL AETHER WIRELESS BE LIABLE FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, OR PUNITIVE DAMAGES, INCLUDING BUT NOT LIMITED TO LOSS OF PROFITS, DATA, OR BUSINESS OPPORTUNITIES, REGARDLESS OF WHETHER SUCH DAMAGES WERE FORESEEABLE OR WHETHER AETHER WIRELESS WAS ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

Binding Arbitration

Any dispute, claim, or controversy arising out of or relating to this contract, including claims against Aether Wireless, its officers, directors, employees, agents, or affiliates, shall be settled by binding arbitration administered by the American Arbitration Association in accordance with its Commercial Arbitration Rules. The arbitration shall be conducted in the state where the customer's billing address is located by a single arbitrator. The arbitrator's decision shall be final and binding, and judgment upon the award may be entered in any court of competent jurisdiction.

The foregoing arbitration provision shall not apply to claims brought in small claims court as provided in Section 2.3 of this policy. Customers who wish to opt out of the arbitration provision must do so in writing within 30 days of contract execution by contacting Aether Wireless customer service.

Cooling-Off Period

Overview

Aether Wireless provides customers with a 14-day cooling-off period during which new customers may cancel their mobile service contract without penalty. This period is designed to allow customers to thoroughly evaluate the service quality, network coverage, and overall suitability of the mobile service before committing to the full contract term. The cooling-off period reflects Aether Wireless's commitment to customer satisfaction and provides peace of mind for customers who may be uncertain about their decision.

Eligibility

The 14-day cooling-off period is available to customers who:

- Enter into a new mobile service contract with Aether Wireless
- Activate a new line on an existing account
- Port their phone number to Aether Wireless from another carrier
- Purchase or lease a new device along with service activation

The cooling-off period is not available for: contract renewals or extensions of existing contracts, upgrades to existing lines, transfers of service to another account holder, or subsequent lines added to an existing account after the initial contract execution.

Timeframe

The 14-day cooling-off period begins on the date the contract is executed, which is defined as

3.1 Purpose and Applicability

3.1.1 Purpose

This Mobile Contract Policy ("Policy") establishes the terms, conditions, rights, and obligations governing the provision of mobile telecommunications services by Aether Wireless to its customers. The Policy is designed to ensure transparency in the contractual relationship between Aether Wireless and its subscribers, to define the respective responsibilities of each party, and to provide a clear framework for the management of mobile service agreements from inception through termination.

The purpose of this Policy is to protect both the interests of Aether Wireless and its customers by articulating a comprehensive set of guidelines that govern service delivery, acceptable use, billing practices, termination

procedures, and dispute resolution. This Policy serves as the binding agreement between Aether Wireless and each customer who subscribes to mobile services, superseding any prior oral or written representations, understandings, or agreements not expressly incorporated herein.

3.1.2 Applicability

This Policy applies to all customers who enter into a mobile service contract with Aether Wireless for the provision of mobile telecommunications services. This includes but is not limited to:

- **Individual Subscribers:** Customers who contract for personal mobile service under individual accounts.
- **Family and Group Plans:** Customers who subscribe to shared service plans with multiple lines under a single account.
- **Business Accounts:** Customers who contract for mobile services for business purposes, including small, medium, and enterprise-level organizations.
- **Promotional Device Contracts:** Customers who receive mobile devices at discounted rates or with financing options as part of a promotional offer tied to a service agreement.

This Policy governs all service tiers, rate plans, and service configurations offered by Aether Wireless, including but not limited to postpaid plans, month-to-month arrangements, and any bundled service packages that include mobile voice, text, and data services.

3.1.3 Service Term Structure

All mobile service contracts governed by this Policy are structured as month-to-month agreements with automatic renewal. Upon the expiration of any initial service period, the contract automatically renews on a month-to-month basis unless either party provides appropriate notice of non-renewal in accordance with the termination provisions set forth in this Policy. The month-to-month structure provides customers with flexibility while ensuring continuous service delivery.

3.1.4 Contract Integration

This Policy should be read in conjunction with the specific service agreement, rate plan documentation, device financing agreements, and any promotional terms accepted by the customer at the point of sale. Where conflicts arise between this Policy and other contractual documents, the terms of this Policy shall prevail unless otherwise specified in writing by Aether Wireless.

By activating service, using Aether Wireless network resources, or making payment on an Aether Wireless account, the customer acknowledges having read, understood, and agreed to be bound by the terms of this Policy.

Q: What is the cooling-off period for my mobile contract?

A: You have 14 days from the date of service activation to cancel your contract without penalty. This cooling-off period allows you to review the service and terminate if it does not meet your needs.

Q: What happens if I cancel my promotional device contract early?

A: If you cancel a line associated with a promotional device contract before completing 12 months of service, an early termination fee of \$175 will apply.

Q: Are device installment payments related to my service contract?

A: No. Device installment agreements are separate from your monthly service contract. If you cancel your service, any remaining device installment balance becomes immediately payable in full.

Q: How will I be notified of changes to my contract?

A: Aether Wireless will provide at least 30 days' notice for any material changes to your contract terms. Upon receiving notice of a material change, you have the right to terminate your contract without penalty.

Q: What uses are prohibited under this policy?

A: Prohibited uses include reselling Aether Wireless services, sending automated commercial messages, and transmitting illegal content. Violation may result in service termination and liability for resulting damages.

Q: What happens if there's a dispute about my service?

A: Except for small-claims cases, all disputes will be resolved through binding arbitration rather than court litigation. This means you waive the right to a jury trial for most contract-related disputes.

Q: How does billing work with my mobile service?

A: Your mobile service charges integrate with your designated payment method. You are responsible for ensuring timely payment of all service and device installment charges per the contract terms.

Contact Finance Operations:

Email: finance@aetherwireless.com